

25STCV30930 25STCV30930

County: los-angeles

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Case Number: 25STCV30930 Hearing Date: August 26, 2026 Dept: 224

DFDM v. DAPPZ

TENTATIVE RULING

The OSC is CONTINUED to October 12, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package addressing the deficiencies 10 days before the hearing.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

ANALYSIS

FACTS OF THE CASE:

Plaintiff DFDM National, LLC supplies sports goods and memorabilia. Defendant DAPPZ Sports resells and promotes those goods. The parties dealt on an ongoing basis, with each order confirmed in writing by invoices and purchase orders. Between June 30 and August 19, 2025, Plaintiff shipped and delivered goods to Defendant at Defendant's request, with payment due no later than September 4, 2025. Defendant accepted the goods and did not pay. Plaintiff's counsel sent a demand letter on October 13, 2025 requiring payment by October 20; Defendant acknowledged receiving the letter but did not cure. The aggregate unpaid balance is \$298,139.31. The complaint pleads breach of written contract, open book account, account stated, and the reasonable value of goods sold and delivered.

PROOF OF SERVICE/DEFAULT:

The complaint was filed October 23, 2025. Plaintiff exercised a peremptory challenge under Code of Civil Procedure section 170.6 on October 24, 2025, which was granted October 27, 2025, and the case was reassigned; it was reassigned again on February 24, 2026. Defendant DAPPZ Sports was served by substituted service on October 30, 2025 at 6860 Lexington Avenue, Los Angeles, CA 90038, the office of its agent for service of process Matt McGuckin, by leaving the papers with the person apparently in charge, followed by first-class mailing to the same address on October 31, 2025 (Code Civ. Proc., §§ 415.20(a), 416.10). Service was therefore complete on November 10, 2025 and a response was due December 10, 2025.

Default was entered on December 12, 2025. Does 1 through 20 were dismissed without prejudice, entered December 31, 2025, leaving DAPPZ Sports as the sole defendant. The Case Management Conference was continued from July 27, 2026 to August 26, 2026 by order filed March 11, 2026.

Judgment requested (JUD-100 and CIV-100 filed December 31, 2025):

PRINCIPAL REQUESTED: \$ 298,139.31

INTEREST: \$ 8,576.40

ATTORNEY'S FEES: \$ 4,871.39

COSTS: \$ 522.40

TOTAL: \$ 312,109.50

Discussion:

Plaintiff has submitted all the requisite forms: a CIV-100 requesting entry of default (filed December 12, 2025), a CIV-100 requesting a court judgment under Code of Civil Procedure section 585(b) (filed December 31, 2025), a summary of the case with supporting declarations under section 585(d), a memorandum of costs (MC-010), and a proposed JUD-100. Item 2 of the CIV-100 is completed. No declaration of nonmilitary status is required, because the sole remaining defendant is a corporation, and item 8 of the CIV-100 is in any event completed. Plaintiff has dismissed the Doe defendants. The request for dismissal of Does 1 through 20, inclusive, only, without prejudice, was filed December 31, 2025 and entered by the clerk that same day, leaving DAPPZ Sports as the sole defendant. The prove-up is adequate.

The declaration of Darius DiMartino, who has been the Manager of Plaintiff since its formation in 2014, is made on personal knowledge by a percipient witness competent to testify. It is supported by a summary of the unpaid invoices attached as Exhibit 1 to the complaint and incorporated in the application, together with the demand correspondence. The invoice ledger ties out to the amount sought. Eleven invoices remain open (Nos. 102, 113, 126, 127, 152, 153, 156, 165, 169, 192 and 196), carrying balances of \$10,150.00, \$54,359.55, \$53,000.00, \$2,750.00, \$12,219.28, \$31,450.00, \$24,160.00, \$24,575.00, \$38,139.94, \$20,295.54 and \$27,040.00. Those balances total exactly \$298,139.31, which is both the ledger's stated Total Open and the principal demanded. That figure is net of \$15,200.00 in credited returns and includes \$2,124.31 in shipping and freight billed on the invoices.

The relief requested does not exceed the complaint. The prayer seeks damages of not less than \$298,139.31, interest at the maximum rate allowed by law, attorney's fees under the contract and under Civil Code section 1717.5, and costs of suit. The judgment requests that same principal, with interest, fees, and costs, so Code of Civil Procedure sections 580 and 585 are satisfied.

Interest is properly supported and computed. The complaint prays for interest, the sum was certain as of the September 4, 2025 payment date, and the declaration supplies the daily breakdown required by rule 3.1800(a)(3): \$298,139.31 at 10 percent is \$29,813.93 per year, or \$81.68 per day, multiplied by the days elapsed from September 4 through December 17, 2025 (Civ. Code, §§ 3287, 3289). The principal is composed of unpaid invoice amounts and includes no accrued interest.

The attorney's fee request is calculated correctly under LASC Local Rule 3.214(a). For a judgment over \$100,000 the schedule allows \$2,890 plus 1 percent of the excess: \$298,139.31 less \$100,000 is \$198,139.31, one percent of which is \$1,981.39, for a total of \$4,871.39. Plaintiff states that it has incurred more than \$6,000 in fees but will accept the schedule

amount, which is the approach Civil Code section 1717.5(b) contemplates where the local rule produces the lower figure. The invoices supply the contractual basis, providing that the "Buyer is liable to seller for all costs to collect payment due under this invoice, including attorneys' fees."

Costs of \$522.40 are itemized and verified on both the MC-010 and the CIV-100 memorandum of costs at subpart 7 (clerk's filing fees \$435.00; process server \$50.00; electronic filing fees \$37.40), and are allowable under section 1033.5(a). The MC-010 total of \$5,393.79 includes the \$4,871.39 in attorney's fees at line 10, so the cost component is \$522.40, which is the figure carried onto the proposed judgment. PROBLEMS:

1. The pleading and the proof describe the contract differently. The complaint is captioned for breach of written contract and its first cause of action is pleaded as a written contract. The summary submitted with the application states instead that the parties "entered into an oral contract," which was "confirmed in writing with invoices/purchase orders," and the attorney-fee provision relied upon appears on the face of the invoices. The discrepancy does not affect the amount awarded, and fees remain recoverable in any event on the open book account count under Civil Code section 1717.5, but Plaintiff should reconcile the characterization and address legally how invoices can constitute a contract in a legal brief.

2. The interest period is stated as 105 days. The declaration recites the period as running "from September 4, 2025, through December 17, 2025," which is 104 days measured by subtraction, and 105 only if both endpoints are counted. At the stated rate of \$81.68 per day the difference is a single day, or \$81.68. If the Court applies 104 days, interest is \$8,494.93 and the total judgment is \$312,028.03.

3. The summary misstates the costs figure. It recites that Plaintiff "will accept \$4,871.39 under the Local Rule attorney's fees and \$560.50 in costs." The verified memorandum of costs, the CIV-100, and the proposed judgment all state \$522.40. The verified figure of \$522.40 controls, and the \$560.50 reference appears to be an error.

DISPOSITION:

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The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.